

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: June 9, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On June 1, 2021, the parties filed a joint status report and proposed amended discovery schedule (“JSR 2”). The parties are engaged in discovery and are reviewing databases of millions of documents to locate responsive documents and then manually review and prepare them for production. JSR 2 at 2-3. In light of the additional time needed to finish review and production of the documentary discovery described above, the parties jointly request that the date to complete document production be extended for sixty days and that the schedule of proceedings be commensurately amended. JSR 2 at 5. The amended schedule proposed by the parties is reasonable and accepted as proposed. The schedule requires:

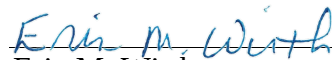
August 2, 2021	Complete Document Production
September 17, 2021	Complete Fact Depositions; File Joint Stipulation of Facts
October 18, 2021	Disclosure of Initial Expert Reports
November 8, 2021	Disclosure of Rebuttal Expert Reports
November 22, 2021	Expert Discovery Cut-off
December 6, 2021	Completion of Discovery
December 20, 2021	Motions for Summary Decision

A deadline has been provided to file a joint stipulation of facts. The parties are encouraged to begin discussing stipulations of fact to ensure that discovery is focused on the material facts in dispute.

The parties also discuss a dispute regarding whether they had agreed to phased discovery with an initial geographic limitation. JSR 2 at 3-5. Complainant understood that the March 1, 2021, joint status report (“JSR 1”) “memorialized the Parties’ agreement that ‘initial’ discovery, i.e., all discovery prior to motions for summary decision, would be limited, as appropriate, to the four geographical areas.” JSR 2 at 4. Respondents understood the reference to geographic areas “only as a reflection of the agreement to facilitate Complainants’ request for prioritizing ‘initial Party’ document discovery, not a limitation on all discovery in the proceeding, and certainly not with respect to non-Party discovery.” JSR 2 at 4. Respondents further assert that “restriction on Respondents’ Party and non-Party discovery requests would constitute a material limitation on Respondents’ right to discoverable information pertaining to other relevant ports and terminals beyond the four which have been selected by Complainant” and state that if the parties are unable to resolve this issue, Respondents will file a motion to compel. JSR 2 at 5.

In JSR 1, the parties state that they “have conferred and propose limiting certain categories of initial Party document discovery to the following geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area.” JSR 1 at 1. The parties further indicate that “any disputes will be submitted to the Presiding Officer” and “[a]fter the completion of discovery, a Party or Parties may seek permission from the Presiding Officer to conduct additional discovery.” JSR 1 at 2.

A motion to compel has not yet been filed so it would be premature to issue a binding order on this issue. However, it is in the interests of the parties and nonparties to focus discovery on the areas most likely to aid in resolving the proceeding and to control costs by limiting discovery during the early stages of this proceeding, especially for nonparties. Nonparties served discovery exceeding the geographic scope of discovery directed to parties may have a basis to challenge that discovery. This would not waive a party’s ability to take needed discovery at a later date.



Erin M. Wirth

Chief Administrative Law Judge